

CHAPTER 43.

An Act to provide for the improvement of live stock by regulating the keeping and importation of bulls and for purposes connected with the matters aforesaid. [31st July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, it shall not be lawful on or after the appointed day to keep a bull which has attained the prescribed age, unless a licence or permit in respect of the bull is for the time being in force under this Act, or unless the bull attained the prescribed age before the appointed day, and any person who keeps a bull in contravention of this section shall be liable on summary conviction to a fine not exceeding five pounds in the case of a first offence, or twenty pounds in the case of a second or subsequent offence. Restrictions
on keeping
bulls.

(2) For the purpose of any proceedings in respect of an offence under this section, it shall be presumed until the contrary is proved that the bull had attained the prescribed age at the time when the offence is alleged to have been committed and had not attained that age before the appointed day, but it shall be a good defence for a person charged with such an offence to prove that the bull was not bred by him, that he took all reasonable steps to ascertain the age of the bull, and that he had reason to believe that the bull—

(a) had not attained the prescribed age at the time when the offence was alleged to have been committed; or

(b) had attained that age before the appointed day.

(3) For the purposes of this section, a person shall be deemed to keep a bull if he owns the bull or has the bull in his possession or custody.

Licences and permits for bulls.

2.—(1) On application being made in the prescribed manner and within the prescribed time, or such further time as the Minister may in any case allow, and on payment of such fee (not exceeding five shillings) as may be prescribed, the Minister shall, subject to the provisions of this section and if satisfied that the prescribed conditions as to inspection and marking have been complied with, grant in the prescribed form to the owner of any bull—

(a) a licence to keep the bull for breeding purposes; or

(b) a permit to keep the bull for any other purpose.

(2) The Minister may refuse to grant or may revoke a licence in respect of a bull, if the bull appears to him to be—

(a) of defective or inferior conformation and likely to beget defective or inferior progeny; or

(b) permanently affected with any contagious or infectious disease; or

(c) permanently affected with any other disease rendering the bull unsuitable for breeding purposes;

and may revoke a licence in respect of a bull, if any condition of the licence is contravened or not complied with.

(3) The Minister may refuse to grant or may revoke a permit on any grounds which appear to him sufficient.

(4) If the Minister refuses to grant or revokes a licence or permit, he shall give notice to that effect, in the case of a refusal of a licence or permit, to the applicant therefor, and, in the case of a revocation of a licence or permit, to the owner or the person stated therein to be the owner of the bull, and any such notice given in respect of a licence shall state the grounds for the refusal or revocation.

(5) If notice is duly given in accordance with the last foregoing subsection to a person who is not the owner of the bull, it shall be the duty of that person forthwith to take all reasonable steps to inform the owner accordingly, and, if he fails to do so, he shall be liable to

indemnify the owner against any loss the owner may suffer by reason of the failure.

(6) It shall be a good defence for a person charged with the offence of keeping a bull in contravention of this Act to prove that, at the date when the offence is alleged to have been committed, application had been duly made for a licence or permit in respect of the bull and the Minister had not given notice of his decision on that application.

(7) Where the Minister is satisfied that a licence or permit granted under this Act has been lost or destroyed, he may, on application made in the prescribed manner and on payment of the prescribed fee, issue to the holder of that licence or permit a duplicate thereof, and thereupon all the provisions of this Act with respect to a licence or permit shall apply to the duplicate as if it were the original licence or permit.

3.—(1) Upon any change in the ownership of a bull in respect of which a licence or permit is in force under this Act (other than a change in consequence of the death of the holder), the holder of the licence or permit shall forthwith deliver it to the new owner together with any notice of suspension received by him in respect of the bull the terms of which have not already been endorsed thereon, and shall send by post to the Minister written notice of the name and address of the new owner, and the new owner, upon delivery to him of the licence or permit, shall become the holder thereof for the purposes of this Act.

Change of
ownership
and dura-
tion of
licence or
permit.

(2) Upon the death of the holder of a licence or permit in force under this Act, his personal representative shall become the holder thereof for the purposes of this Act.

(3) Any person becoming the holder of a licence or permit under the foregoing provisions of this section shall, within one month thereafter, send the licence or permit by post to the Minister, together with a request for the transfer thereof, and the Minister shall thereupon transfer the licence or permit to that person by endorsement or otherwise.

(4) If any licence or permit is not sent to the Minister in accordance with the last foregoing subsection, it shall

become void at the expiration of the said period of one month, but without prejudice to an application for a new licence or permit, as the case may be.

(5) A licence or permit granted under this Act in respect of a bull shall remain in force until one of the following events occurs, that is to say, until—

- (a) the licence or permit is revoked or becomes void under this Act; or
- (b) the bull dies or is castrated; or
- (c) the bull has been outside Great Britain for a consecutive period of fourteen days or such longer consecutive period as the Minister may allow; or
- (d) in the case of a permit, the period specified therein expires.

In computing for the purposes of this subsection how long a bull has been outside Great Britain, the period of its absence shall be deemed to begin at the time when it is put on board any ship for the purpose of being carried out of Great Britain and to end at the time when it is landed in Great Britain on its return.

(6) On a licence or permit ceasing to be in force the holder thereof shall return it to the Minister within fourteen days.

(7) If the holder of a licence or permit fails to comply with any of the requirements of subsection (1) or subsection (5) of this section, he shall be liable on summary conviction to a fine not exceeding five pounds.

Conditions
of licence or
permit.

4.—(1) It shall be a condition of a licence or permit granted under this Act that the holder thereof shall—

- (a) forthwith notify the Minister of any change of his address; and
- (b) submit the bull to which the licence or permit relates to inspection at any reasonable time, either at the place where the bull is for the time being or at any other reasonable place, by any officer of the Ministry when required by such an officer so to do, and render all reasonable assistance to that officer for the purpose of the inspection.

(2) An applicant for a permit under this Act shall state in his application the place where he proposes to keep the bull to which the application relates, and, unless the Minister otherwise directs, that place shall be specified in the permit and it shall be a condition of the permit that the bull shall be kept at that place or such other place as may from time to time, on application made in the prescribed manner, be substituted in the permit for the place theretofore specified.

(3) If it appears to the Minister that a bull, in respect of which a licence is about to be or has been granted, is temporarily affected by a disease or defect rendering the bull unsuitable for breeding purposes, the Minister may by notice (in this Act referred to as a "notice of suspension") served in the prescribed manner make it a condition of the licence that the bull shall not, for such period as the Minister may think fit, be allowed to serve a cow, and the licence shall be endorsed accordingly.

(4) It shall be a condition of a permit granted under this Act that the bull to which it relates shall not be allowed to serve a cow:

Provided that the Minister may, on such conditions as he thinks fit, exempt from the provisions of this subsection any bull kept in a zoological collection or otherwise in the interests of the science of zoology or kept solely for experimental purposes.

(5) If any condition of a licence or permit imposed by subsection (1) or subsection (2) of this section is contravened or not complied with, the holder of the licence or permit shall be liable on summary conviction to a fine not exceeding five pounds, and if any person allows a bull to serve a cow in contravention of a condition of a licence or permit imposed in pursuance of subsection (3) or by subsection (4) of this section, he shall be liable on summary conviction to a fine not exceeding five pounds in the case of a first offence or twenty pounds in the case of a second or subsequent offence.

5.—(1) If, as respects any bull, the Minister—

Appeal to
referee.

- (a) refuses to grant a licence; or
- (b) revokes a licence on any ground other than that a condition of the licence has not been complied with; or
- (c) serves a notice of suspension;

the applicant for, or holder of, the licence, as the case may be, on application made in the prescribed manner, and within such period as may be prescribed (not being less than fourteen days from the date of the refusal or revocation or the service of the notice, as the case may be), and on payment of such fee (not exceeding two guineas) as may be prescribed, may require a referee's inspection of the bull in accordance with this section.

(2) For the purposes of this section, there shall be constituted a panel of referees consisting of persons appointed by the Minister on the recommendation of such agricultural associations and cattle-breeding societies as the Minister thinks it expedient to consult.

Any person so appointed may be removed from the panel by the Minister after consultation with the association or society by which he was recommended.

(3) When an application has been duly made requiring a referee's inspection under this section, the Minister shall select for the purpose of the application one or more members of the said panel, who shall be paid by the Minister in respect of their duties under this section such fees as the Minister may fix :

Provided that no member of the panel, who has previously been employed either by the Minister or by the applicant to inspect the bull to which the application relates, shall be selected for the purpose of the application.

(4) The member or members so selected shall inspect the bull to which the application relates and report to the Minister the result of their inspection, and the report shall contain recommendations that the refusal, revocation or notice of suspension, as the case may be, shall be confirmed or withdrawn or, in the case of a notice of suspension, that the notice shall be modified to such extent as may be specified in the recommendations.

(5) The Minister, on receipt of the report aforesaid, shall confirm or withdraw the refusal, revocation or notice, or modify the notice, in accordance with the recommendations, and shall forthwith and in the prescribed manner give notice to the applicant of the result of his application.

(6) It shall be a good defence for a person charged with the offence of keeping a bull in contravention of this Act to prove that at the date when the offence is alleged to have been committed—

- (a) a licence in respect of the bull had been refused or had been revoked in circumstances entitling the holder thereof to apply for a referee's inspection, and the time for making application for such an inspection had not expired; or
- (b) an application had been duly made for a referee's inspection, and the Minister had not given notice to the applicant of the result of the application.

(7) The fee payable on an application under this section shall, if the Minister does not confirm the refusal, revocation or notice to which the application relates, be returned to the applicant by the Minister.

6.—(1) On or after the appointed day the Minister or any officer of the Ministry may, by notice served in the prescribed manner and in accordance with this section, require that any bull, which has attained the prescribed age at the date when the notice is served and in respect of which no licence or permit is for the time being in force under this Act, shall be slaughtered or castrated within such time after the notice takes effect as may be specified in the notice :

Power to
order
slaughter or
castration
of bulls.

Provided that nothing in this section shall apply to a bull which attained the prescribed age before the appointed day.

(2) For the purposes of this section, a notice shall be served—

- (a) in a case where the notice is served together with a notice of a refusal to grant a licence or permit, on the applicant for the licence or permit :
- (b) in a case where the notice is served together with a notice of revocation of a licence or permit, on the person stated in the licence or permit to be the owner of the bull :
- (c) in any other case on any person for the time being having the bull in his possession or custody.

(3) If a notice under this section is duly served on a person who is not the owner of the bull, it shall be the duty of that person forthwith to take all reasonable steps to inform the owner accordingly, and, if he fails to do so, he shall be liable to indemnify the owner against any loss the owner may suffer by reason of the failure.

(4) The notice shall take effect for the purposes of this section at the time of the service thereof:

Provided that—

(a) in a case where—

(i) a licence or permit in respect of the bull has not at any time been applied for or has become void under subsection (4) of section three of this Act; and

(ii) before the expiration of a period of fourteen days from the service of the notice application is duly made for a licence or permit;

the notice shall not take effect unless and until that application is refused and, where the application is for a licence, the time for applying for a referee's inspection has expired, nor, if such an inspection is duly applied for, unless and until the Minister notifies the applicant that he has confirmed the refusal in accordance with the referee's report; and

(b) in a case where the Minister has refused to grant a licence, or revoked a licence in circumstances entitling the holder thereof to apply for a referee's inspection, the notice shall not take effect until the time for making application for such an inspection has expired, nor, if application is duly made for such an inspection, unless and until the Minister notifies the applicant that he has decided to confirm the refusal or revocation in accordance with the referee's report.

(5) If any person on whom a notice has been duly served under this section fails to comply with the notice, he shall be liable on summary conviction to a fine not exceeding three pounds for every day during which the failure continues.

(6) If any person, without the permission of the Minister, at any time after a notice has been duly served under this section removes (otherwise than to a slaughterhouse for the purpose of slaughter) the bull to which the notice relates from the place where the bull is at the time of the service of the notice, he shall be liable on summary conviction to a fine not exceeding five pounds in the case of a first offence or twenty pounds in the case of a second or subsequent offence.

(7) If a notice duly served under this section is not complied with, the Minister may cause the bull to which the notice relates to be slaughtered or castrated at the expense of the person on whom the notice was served, and the cost of the slaughter or castration shall be paid by that person to the Minister on demand, or in default may be recovered from that person by the Minister summarily as a civil debt.

(8) For the purpose of any proceedings under or arising out of this section, it shall be presumed until the contrary is proved that the bull to which the proceedings relate had attained the prescribed age at the date when the notice was served, and had not attained that age before the appointed day.

(9) The provisions of this section shall be in addition to, and not in substitution for, the provisions of this Act imposing penalties with respect to the keeping of a bull without a licence or permit.

7.—(1) It shall be the duty of any person for the time being having a bull in his possession or custody—

Duty to
produce
licence or
permit.

(a) if a licence or permit is in force in respect of the bull, to produce the licence or permit within a reasonable time on demand made by an officer of the Ministry or a police officer at any place where the bull is for the time being;

(b) if a licence is in force in respect of the bull, to produce the licence if required so to do by the person in charge of a cow about to be served by the bull.

(2) If any person fails to comply with this section, he shall be liable on summary conviction to a fine not exceeding five pounds.

(3) A failure on the part of any person having a bull in his possession or custody to produce, within a reasonable time, on demand made as aforesaid by an officer of the Ministry or a police officer, a licence or permit for the time being in force in respect of the bull shall, in any proceedings taken under this Act against that person or against the owner of the bull, be evidence that no licence or permit was at the date of the demand aforesaid in force in respect of the bull.

Penalty for
forgery, &c.

8.—(1) If any person with intent to deceive—

- (i) forges or uses or lends to or allows to be used by any other person a licence or permit under this Act; or
- (ii) makes or has in his possession any document so closely resembling such a licence or permit as to be calculated to deceive; or
- (iii) places on a bull a mark so closely resembling a mark prescribed under this Act as to be calculated to deceive; or
- (iv) places on a bull a mark prescribed under this Act or alters or defaces any mark placed on a bull for the purposes of this Act;

he shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months, or to both such imprisonment and fine.

(2) In the application of this section to England, the expression “forges” has the same meaning as in the Forgery Act, 1913.

3 & 4 Geo. 5
c. 27.

Importation
of bulls
rejected in
Ireland.

9. No bull brought to Great Britain from any part of Ireland shall be moved alive out of the wharf at which it is landed, if the bull has been marked with a mark prescribed under the laws of the Irish Free State or Northern Ireland for the purpose of signifying that an application has been made under those laws for a licence in respect of the bull and has been refused.

Powers of
officers and
penalty for
obstruction,
&c.

10.—(1) For the purposes of this Act, an officer of the Ministry shall have power at all reasonable times—

- (a) to inspect any bull:

(b) to mark any bull with a prescribed mark in the prescribed manner :

(c) to enter any premises or other place where he has reason to believe a bull is kept.

(2) An officer of the Ministry, when exercising any power conferred upon him by this Act, shall, if so required, produce a certificate of his employment to any person affected by the exercise of the power.

(3) If any person obstructs or impedes an officer of the Ministry in the exercise of any power conferred upon him by this Act, that person shall be liable on summary conviction to a fine not exceeding five pounds in the case of a first offence or twenty pounds in the case of a second or subsequent offence.

(4) It shall be the duty of any person having a bull in his possession or custody to render all reasonable assistance to any officer of the Ministry for the purpose of the exercise, in respect of the bull, of any power conferred upon the officer by this Act, and if that person fails to render such assistance he shall be liable on summary conviction to a fine not exceeding five pounds.

11.—(1) The Minister may make regulations (subject, in respect of fees, to the approval of the Treasury) for prescribing anything which under this Act is required or authorised to be prescribed. Power to make regulations.

(2) The regulations prescribing the age of bulls for the purpose of this Act may prescribe different ages for different breeds of bulls.

(3) Any regulation made under this section shall be laid before both Houses of Parliament forthwith; and, if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat after any such regulation is laid before it praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or the making of a new regulation.

12.—(1) The expenses of the Minister under this Act, to such amount as may be approved by the Treasury, shall be defrayed out of moneys provided by Parliament. Expenses of Minister.

(2) All sums received under this Act by the Minister shall be applied by him as an appropriation in aid of moneys provided by Parliament for the payment of expenses incurred under this Act.

Interpreta-
tion.

13. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

“The appointed day” means—

(i) in the application of this Act to England, such day, not being earlier than three years after the passing of this Act, as may be appointed by the Minister of Agriculture and Fisheries;

(ii) in the application of this Act to Scotland, such day, not being earlier than one year after the passing of this Act, as may be appointed by the Secretary of State;

“Cow” includes a heifer:

“The Minister” means—

(i) in the application of this Act to England, the Minister of Agriculture and Fisheries;

(ii) in the application of this Act to Scotland, the Department of Agriculture for Scotland:

“Officer of the Ministry” includes any person for the time being employed by the Minister for the purposes of this Act:

“Prescribed” means prescribed by regulations under this Act.

Short title
and extent.

14.—(1) This Act may be cited as the Improvement of Live Stock (Licensing of Bulls) Act, 1931.

(2) This Act shall not extend to Northern Ireland.

